

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DESTINY RIVERA,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE MICHAEL SIMMS and
NYPD OFFICER KEVIN DWYER,

Defendants.

----- X

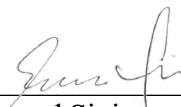
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 3, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By


Edward Sivin

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Detective Michael Simms, c/o NYPD 9th Pct., 321 E 5th St, New York, NY 10003

-NYPD Officer Kevin Dwyer, c/o NYPD 9th Pct., 321 E 5th St, New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DESTINY RIVERA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE MICHAEL SIMMS and
NYPD OFFICER KEVIN DWYER,

Defendants.

----- X

Plaintiff, by her attorneys Sivin, Miller & Roche, LLP, complaining of
defendants, alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, organized and existing under and by virtue of the laws of the State of New York.
2. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
3. That at all times herein mentioned, the City operated, controlled, and maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Detective Michael Simms (hereinafter “Simms”) was and is employed as a detective with the NYPD.

5. That at all times herein mentioned, Simms was acting within the course and scope of his employment as a detective with the NYPD.

6. That at all times herein mentioned, Simms was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Officer Kevin Dwyer (hereinafter “Dwyer”) was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, Dwyer was acting within the course and scope of his employment as an officer with the NYPD.

9. That at all times herein mentioned, Dwyer was acting under color of state law.

10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

11. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

12. That on August 18, 2019, at or around the intersection of Broadway and East 12th Street, New York, NY, members of the NYPD, including but not limited to Simms and Dwyer, acting in concert with each other, and without legal provocation, probable cause, reasonable suspicion, or justification, and without a warrant, and without plaintiff’s permission and consent, forcibly grabbed and seized plaintiff, forcibly slammed plaintiff to the ground, and otherwise used force against plaintiff that was not justified.

13. That following this initial seizure of plaintiff, defendants forcibly applied handcuffs to plaintiff and, without probable cause, placed plaintiff under arrest and forcibly

confined and imprisoned plaintiff and/or caused plaintiff to be confined and imprisoned at various other locations.

14. That the aforesaid actions by defendants were without legal provocation or justification, and were offensive and excessive under the circumstances.

15. That on or about August 18, 2019, defendants also initiated and/or caused to be initiated against plaintiff a criminal prosecution in which plaintiff, without probable cause, was charged with various crimes of which she was innocent and of which defendants knew plaintiff was innocent.

16. That in support of the criminal prosecution, Simms and Dwyer made statements to the Office of the District Attorney and in official documents that were false and that they knew were false, including but not limited to that plaintiff refused lawful orders and that plaintiff punched, kicked, and otherwise assaulted Simms.

17. That in support of the criminal prosecution, Dwyer executed a sworn accusatory instrument in which he made accusations against plaintiff that were false and that he knew were false, including but not limited to that plaintiff refused lawful orders and that plaintiff punched, kicked, and otherwise assaulted Simms.

18. That the aforementioned false statements and fabrications by Simms and Dwyer constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

19. That as a consequence of the aforesaid prosecution and false statements and fabrications, plaintiff was required to appear in court and was restricted in her travel and liberty.

20. That on or about February 26, 2020, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

21. That the aforesaid actions by Simms and Dwyer were done intentionally and maliciously.

22. That as a result of the aforementioned actions by Simms and Dwyer, plaintiff sustained severe physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of her liberty and freedom, was damaged in her reputation, and has been otherwise damaged.

23. That upon information and belief, prior to the events alleged herein Simms and Dwyer had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

24. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Simms and Dwyer had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

25. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Simms and Dwyer were unfit to act as police officials.

26. That despite the City's and the NYPD's prior knowledge of Simms' and Dwyer's unfitness and propensities, the City and the NYPD knowingly retained Simms and Dwyer NYPD officials, thereby subjecting plaintiff to Simms' and Dwyer's improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault and Battery Under NY State Law)

27. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

28. That the aforesaid actions of the NYPD officers, including Simms and Dwyer, constitute an assault and battery of plaintiff, for which Simms and Dwyer are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

30. That the aforesaid actions of the NYPD officers, including Simms and Dwyer, constitute a false arrest and false imprisonment of plaintiff, for which Simms and Dwyer are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

31. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

32. That the aforesaid actions of Simms and Dwyer constitute a malicious prosecution of plaintiff, for which Simms and Dwyer are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST SIMMS and DWYER**(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations)**

33. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

34. That the aforesaid actions by Simms and Dwyer in using excessive force against, falsely arresting, falsely imprisoning, and maliciously prosecuting plaintiff constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST SIMMS and DWYER**(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)**

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by Simms and Dwyer constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY**(Negligent Hiring, Training, Supervision, and Retention)**

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid actions by Simms and Dwyer and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Simms and Dwyer.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim: Deliberate Indifference)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by Simms and Dwyer and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Simms and Dwyer in which Simms and Dwyer violated the constitutional rights of citizens of the State of New York.

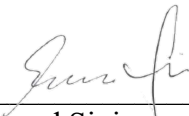
41. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Simms and Dwyer in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42

USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
June 3, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

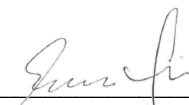
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 3, 2020



EDWARD SIVIN

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SIVIN, MILLER & ROCHE, LLP

Attorneys for Plaintiff

20 Vesey Street, Suite 1400

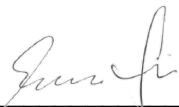
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
June 3, 2020